



Blue Ridge Specialty, LLC.
601 E. McBee Ave, Suite 200
Greenville, SC 29601

Date Prepared: 2/25/2025

Auto Physical Damage

Schedule Of Taxes And Fees

Agency: Insgroup LLC		Insured: Superior Waste Industries	
Address: 5151 SAN FELIPE ST HOUSTON, TX 77056-3607		Address: PO BOX 217 KEMAH, TX 77565	
Phone: (713) 541-7272	Fax:		
Contact: Charlene Ulmer			
Effective Date: 2/15/2025		Policy Number: ILM0200511	
Expiration Date: 2/15/2026		Carrier: RLI / Mt. Hawley Insurance Company Non-Admitted - A+	

Please refer to Coverage Details on the attached Policy.

Premiums

Auto Physical Damage Premium:	47,266.00
Terrorism:	EXCLUDED
Processing Fee:	250.00
Surplus Lines:	2,304.53
Stamping Fee:	19.01
Total Premium:	49,839.54
Deposit Due:	0.00

The insurance contract is with an insurer not licensed to transact insurance in this state and is issued and delivered as a surplus line coverage under the Texas insurance statutes. The Texas Department of Insurance does not audit the finances or review the solvency of the surplus lines insurer providing this coverage, and this insurer is not a member of the property and casualty insurance guaranty association created under Chapter 462, Insurance Cod. Chapter 225, Insurance Code, requires payment of 4.85% tax on gross premium.



RLI Marine Policy

ILM0200511

for

Superior Waste Industries LLC



Mt. Hawley Insurance Company

Peoria, Illinois 61615

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

**SERVICE OF SUIT AND COMMON POLICY CONDITIONS
ENDORSEMENT**

This Policy is amended to add the following additional **Common Policy Conditions**:

AA. Jurisdiction and Venue. In the event of any litigation involving any matter arising out of or relating to this Policy, it is agreed that any Named Insured, any additional insured, any purported insured, or any beneficiary or purported beneficiary of this Policy shall submit to the jurisdiction of the New York state and New York federal courts, and shall comply with all the requirements necessary to give such courts jurisdiction. Any litigation arising out of or relating to this Policy shall be brought only in the state or federal courts of New York. Nothing in this clause constitutes or should be understood to constitute a waiver of the Company's right to remove an action to a United States District Court.

BB. Choice of Law. All matters arising out of or relating to this Policy shall be determined in accordance with the law and practice of the State of New York (notwithstanding New York's conflict of law rules). All matters include, without limitation, the procurement, formation, issuance, validity, interpretation, and enforcement of this Policy, as well as claim handling and any other performance in connection with this Policy.

Service of Suit

It is agreed that service of process in any suit against the Company may be made upon the Superintendent, Commissioner, or Director of Insurance or other person specified for that purpose in the statute or his successor or successors in office as their true and lawful attorney upon whom may be served any lawful process in any action, suit, or proceeding instituted by or on behalf of any Named Insured, any additional insured, any purported insured, or any beneficiary or purported beneficiary hereunder arising out of this contract of insurance.

The Company hereby designates Craig W. Kliethermes, President,

Mt. Hawley Insurance Company

9025 N. Lindbergh Drive, Peoria, Illinois 61615 as the person to whom the said Superintendent, Commissioner, or Director of Insurance is authorized to mail such process or a true copy thereof, in compliance with the applicable statutes governing said service of process in the state or jurisdiction.

ALL OTHER TERMS AND CONDITIONS OF THIS POLICY REMAIN UNCHANGED.



Mt. Hawley Insurance Company
Peoria, Illinois 61615

ATTENTION POLICYHOLDER:

KEEP THIS NOTICE WITH YOUR INSURANCE PAPERS

Any person who knowingly and with intent to defraud any insurance company or other person files an application for insurance or statement of claim containing any materially false, incomplete, or misleading information, or conceals information concerning any material fact thereto, commits a fraudulent insurance act, which is a crime punishable by incarceration, and shall also be subject to civil penalties.



NOTICE TO OUR INSURED AND THEIR AGENTS OF OUR CLAIM NOTIFICATION PROCEDURE

As part of our continuing effort to provide you with the best service available,
ALL CLAIMS, OCCURRENCES, INCIDENTS, LAWSUITS
under this policy are to be reported immediately to:

Mt. Hawley Insurance Company
9025 N. Lindbergh Drive
Peoria, IL 61615

Phone: (800) 444-0406
Fax: (866) 692-6796
new.claim@rlicorp.com

In the event you suffer an EMERGENCY LOSS during NON-BUSINESS hours (holidays, weekends, or 5:00 p.m. CST – 8:30 a.m. on normal business days), you may now call the special toll-free hot-line number to receive advice and assistance appropriate to your needs. The number is **1-800-621-5410**. This number is to be utilized ONLY during NON-BUSINESS hours as set forth above and ONLY IN THE EVENT OF AN EMERGENCY!!

ALL LOSSES must be reported in the usual manner as well, to your AGENT or BROKER.

Below is a "cut-out" card to keep in your wallet or with your business papers.

We pledge to continue upgrading our services to our valued policyholders.

Sincerely,

A handwritten signature in cursive script that reads 'Robert S. Handzel'.

Robert S. Handzel
Vice President, Chief Claim Officer

CUT ALONG DOTTED LINE

Insured: Superior Waste Industries LLC

Policy No: ILM0200511

**EMERGENCY HOT-LINE
PHONE CONTACT
(Non-Business Hours)
1-800-621-5410**

Keep this card with you or in a safe place
for emergency use only.



Mt. Hawley Insurance Company
Peoria, Illinois 61615

NOTICE TO POLICYHOLDERS

REGARDING THE UNITED STATES TREASURY DEPARTMENT – OFFICE OF FOREIGN ASSETS CONTROL (OFAC)

This Policyholder Notice does not provide coverage nor can it be construed to replace any provisions of your policy. Please read your policy carefully to determine your rights, duties, and what is and what is not covered by your policy. This Notice should only be used to provide information concerning the possible impact of your insurance coverage as it relates to directives issued by OFAC.

PLEASE READ THIS NOTICE CAREFULLY.

OFAC administers and enforces economic and trade sanctions and places restrictions on certain transactions. OFAC acts pursuant to Executive Orders of the President of the United States and specific legislation. OFAC has identified and named numerous foreign agents, front organizations, terrorists, terrorist organizations, and narcotics traffickers, among others, as “Specially Designated Nationals and Blocked Persons.” The complete list can be found on the United States Treasury website – <http://www.treas.gov/ofac>.

Various trade or economic sanctions and other laws or regulations prohibit us from providing insurance in certain circumstances. In accordance with OFAC regulations, if it is determined that you or any other insured, or any person or entity claiming the benefits of this insurance has violated U.S. sanctions law or is a Specially Designated National and Blocked Person, as identified by OFAC, this insurance contract is considered a blocked or frozen contract and will be considered null and void. When an insurance policy is considered to be a blocked or frozen contract, all provisions of this insurance will be immediately subject to OFAC, and neither payments nor premium refunds may be made without authorization from OFAC. Other limitations on the premiums and payments may also apply.



IMPORTANT NOTICE TO POLICYHOLDERS

TERRORISM RISK INSURANCE ACT, AS AMENDED

Under the Terrorism Risk Insurance Act, as amended (the "**Act**"), we must make coverage for "**certified acts of terrorism**" available in the policies we offer. We notified you at the time of offer and purchase of the policy to which this Notice is attached that this coverage was available and we gave you the right to reject our offer of such terrorism coverage. If you elected to purchase the coverage, the premium charged for such coverage is shown on the Declarations page of the policy. If you elected to reject the coverage we have not charged your policy for terrorism coverage and have attached a terrorism exclusion to your policy.

PLEASE NOTE: IF YOU REJECTED THE OFFER OF FEDERAL TERRORISM INSURANCE COVERAGE, THAT REJECTION DOES NOT APPLY TO THE LIMITED EXTENT THAT RELEVANT STATE LAW REQUIRES COVERAGE FOR FIRE LOSSES RESULTING FROM CERTIFIED ACTS OF TERRORISM UNDER THE ACT.

You should know that where coverage is provided by this policy for losses resulting from certified acts of terrorism, such losses may be partially reimbursed by the United States government under a formula established by federal law. Under this formula, the United States government generally reimburses 85% through 2015; 84% beginning on January 1, 2016; 83% beginning on January 1, 2017; 82% beginning January 1, 2018; 81% beginning January 1, 2019 and 80% beginning January 1, 2020 of covered terrorism losses exceeding the statutorily established deductible paid by the insurance company providing the coverage.

You should also know that the Act contains a \$100 billion cap that limits U.S. Government reimbursement as well as insurers' liability for losses resulting from certified acts of terrorism when the amount of such losses in any one calendar year exceeds \$100 billion. If the aggregate insured losses for all insurers exceed \$100 billion, your coverage may be reduced.

Specific coverage terms for terrorism, including limitations and exclusions, are more fully described in endorsements attached to the policy. Your policy may contain an exclusion for losses that are not eligible for federal reinsurance under the Act.

Definitions:

"**Certified act of terrorism**," as defined in Section 102(1) of the Act, means an act that is certified by the Secretary of the Treasury – in consultation with the Secretary of Homeland Security, and the Attorney General of the United States – to be an act of terrorism; to be a violent act or an act that is dangerous to human life, property, or infrastructure; to have resulted in damage within the United States, or outside the United States in the case of certain air carriers or vessels or the premises of a United States mission; and to have been committed by an individual or individuals as part of an effort to coerce the civilian population of the United States or to influence the policy or affect the conduct of the United States Government by coercion.



Mt. Hawley Insurance Company
9025 N. Lindbergh Drive • Peoria, IL 61615 • (309) 692-1000
A stock insurance company, herein called the Company.

POLICY DECLARATIONS

Policy Number: ILM0200511
Renewal of:

Broker Reference Number:

"NAMED INSURED" AND ADDRESS:
Superior Waste Industries LLC
PO Box 217
Kemah, TX 77565

AGENT/BROKER:
F0625 Blue Ridge Specialty LLC
601 E McBee Ave Ste 200
Greenville, SC 29601-2945

POLICY PERIOD From 02/15/2025 To 02/15/2026 at 12:01 AM Standard Time at your mailing address shown above.

In consideration of the premium as outlined below and subject to all the terms of this Policy, this Company agrees to provide the insurance coverage as stated in the attached Policy. This premium may be subject to adjustment.

Coverage Part	Premium
Vehicle Physical Damage	\$47,266.00

See attached Tax, Fee & Surcharge Schedule (OMP 900) if applicable. Taxes/Fees/Surcharges: N/A

Premium payable at inception unless Payment Schedule (OMP 113) applies. **Total Premium:** \$47,266.00

Minimum Earned Premium: 25%

ADDITIONAL FORMS AND ENDORSEMENTS – MADE PART OF THIS POLICY AT TIME OF ISSUE
See Attached Schedule of Endorsements (OMP 2150)

Authorized Signature



Mt. Hawley Insurance Company
Peoria, Illinois 61615

TEXAS POLICYHOLDER NOTICE

TEXAS IMPORTANT NOTICE

Have a complaint or need help?

If you have a problem with a claim or your premium, call your insurance company or HMO first. If you can't work out the issue, the Texas Department of Insurance may be able to help.

Even if you file a complaint with the Texas Department of Insurance, you should also file a complaint or appeal through your insurance company or HMO. If you don't, you may lose your right to appeal.

Mt. Hawley Insurance Company

To get information or file a complaint with your insurance company or HMO:

Call:
Product Manager, Marine
at 309-692-1000

Toll-free: 800-331-4929

Online: <https://www.rlicorp.com/contact-rli>

E-mail: TexasInquiries@rlicorp.com

Mail:
9025 N. Lindbergh Drive, Peoria, Illinois 61615

The Texas Department of Insurance

To get help with an insurance question or file a complaint with the state:

Call with a question: 800-252-3439

File a complaint: www.tdi.texas.gov

Email: ConsumerProtection@tdi.texas.gov

Mail:

Consumer Protection, MC: CO-CP, Texas Department of Insurance, PO Box 12030, Austin, TX 78711-2030

TEXAS AVISO IMPORTANTE

Tiene una queja o necesita ayuda?

Si tiene un problema con una reclamación o con su prima de seguro, llame primero a su compañía de seguros o HMO. Si no puede resolver el problema, es posible que el Departamento de Seguros de Texas (Texas Department of Insurance, por su nombre en inglés) pueda ayudar.

Aun si usted presenta una queja ante el Departamento de Seguros de Texas, también debe presentar una queja a través del proceso de quejas o de apelaciones de su compañía de seguros o HMO. Si no lo hace, podría perder su derecho para apelar.

Mt. Hawley Insurance Company

Para obtener información o para presentar una queja ante su compañía de seguros o HMO:

Llamada:
Gerente de product, Marino
en 309-692-1000

Teléfono gratuito: 800-331-4929

En línea: <https://www.rlicorp.com/contact-rli>

Correo electrónico: TexasInquiries@rlicorp.com

Dirección postal:
9025 N. Lindbergh Drive, Peoria, Illinois 61615

The Texas Department of Insurance

Para obtener ayuda con una pregunta relacionada con los seguros o para presentar una queja ante el estado:

Llame con sus preguntas al: 800-252-3439

Presente una queja en: www.tdi.texas.gov

Correo electrónico: ConsumerProtection@tdi.texas.gov

Dirección postal:

Consumer Protection, MC: CO-CP, Texas Department of Insurance, PO Box 12030, Austin, TX 78711-2030

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

APPLICABLE FORMS & ENDORSEMENTS

FORMS AND ENDORSEMENTS LISTED BELOW APPLY TO AND ARE MADE PART OF THIS POLICY AT TIME OF ISSUE. IF LISTED UNDER A SPECIFIC SECTION, THE FORM APPLIES ONLY TO THAT SECTION AND DOES NOT CHANGE TERMS OR CONDITIONS FOR ANY OTHER SECTION. FORMS LISTED UNDER THE GENERAL SECTION APPLY TO ALL SECTIONS OF THE POLICY.

General Section

RIL 099 (07/23)	Service Of Suit And Common Policy Conditions Endorsement
CPR 2225 (01/15)	Certified Terrorism Loss Exclusion
ILF 0001 (04/22)	Signature Page

Inland Marine Section

CL 0100 03 99	Common Policy Conditions
CL 0700 10 06	Virus or Bacteria Exclusion
OVPD 110 05 22	Vehicle Physical Damage Schedule of Coverages
OVPD 101 05 22	Vehicle Physical Damage Coverage

ALL OTHER TERMS AND CONDITIONS OF THIS POLICY REMAIN UNCHANGED.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

CERTIFIED TERRORISM LOSS EXCLUSION

- 1.** We will not pay for loss, damage, cost or expense caused directly or indirectly by a "certified act of terrorism," as defined below. Such loss or damage is excluded regardless of any other cause or event that contributes concurrently or in any sequence to the loss.
 - a.** "Certified act of terrorism" means an act that is certified by the Secretary of the Treasury, in consultation with the Secretary of Homeland Security and the Attorney General of the United States:
 - (1)** To be an act of terrorism;
 - (2)** To be a violent act or an act that is dangerous to human life, property, or infrastructure;
 - (3)** To have resulted in damage:
 - (a)** Within the United States; or
 - (b)** To an air carrier (as defined in section 40102 of title 49, United States Code); to a United States flag vessel (or a vessel based principally in the United States, on which United States income tax is paid and whose insurance coverage is subject to regulation in the United States), regardless of where the loss occurs; or at the premises of any United States mission; and
 - (4)** To have been committed by an individual or individuals as part of an effort to coerce the civilian population of the United States or to influence the policy or affect the conduct of the United States Government by coercion.
 - No act will be certified by the Secretary of the Treasury as an act of terrorism if the act is committed as part of the course of a war declared by the Congress, or if property and casualty insurance losses resulting from the act do not exceed \$5,000,000 in the aggregate.
 - b.** "Certified terrorism loss" means loss that results from a "certified act of terrorism."
- 2.** If aggregate insured losses attributable to terrorist acts certified under the federal "Terrorism Risk Insurance Act" exceed \$100 billion in a calendar year (January 1 through December 31) and we have met our insurer deductible under the "Terrorism Risk Insurance Act," we shall not be liable for the payment of any portion of the amount of such losses that exceeds \$100 billion; and in such case, insured losses up to that amount are subject to pro rata allocation in accordance with procedures established by the Secretary of the Treasury.
- 3.** Neither the "terms" of this endorsement nor the "terms" of any other terrorism endorsement attached to this policy provide coverage for any loss that would otherwise be excluded by this policy under:
 - a.** Exclusions that address war, military action, or nuclear hazard; or
 - b.** Any other exclusion.
- 4.** The absence of any other terrorism endorsement does not imply coverage for any loss that would otherwise be excluded by this policy under:
 - a.** Exclusions that address war, military action, or nuclear hazard; or
 - b.** Any other exclusion.

ALL OTHER TERMS AND CONDITIONS OF THIS POLICY REMAIN UNCHANGED.

COMMON POLICY CONDITIONS

1. **Assignment** – This policy may not be assigned without "our" written consent.
2. **Cancellation** – "You" may cancel this policy by returning the policy to "us" or by giving "us" written notice and stating at what future date coverage is to stop.

"We" may cancel this policy, or one or more of its parts, by written notice sent to "you" at "your" last mailing address known to "us". If notice of cancellation is mailed, proof of mailing will be sufficient proof of notice.

If "we" cancel this policy for nonpayment of premium, "we" will give "you" notice at least ten days before the cancellation is effective. If "we" cancel this policy for any other reason, "we" will give "you" notice at least 30 days in advance of cancellation. The notice will state the time that the cancellation is to take effect.

"Your" return premium, if any, will be calculated according to "our" rules. It will be refunded to "you" with the cancellation notice or within a reasonable time. Payment or tender of the unearned premium is not a condition of cancellation.
3. **Change, Modification, or Waiver of Policy Terms** – A waiver or change of the "terms" of this policy must be issued by "us" in writing to be valid.
4. **Inspections** – "We" have the right, but are not obligated, to inspect "your" property and operations at any time. This inspection may be made by "us" or may be made on "our" behalf. An inspection or its resulting advice or report does not warrant that "your" property or operations are safe, healthful, or in compliance with laws, rules, or regulations. Inspections or reports are for "our" benefit only.
5. **Examination of Books and Records** – "We" may examine and audit "your" books and records that relate to this policy during the policy period and within three years after the policy has expired.

CL 0100 03 99

AAIS
CL 0700 10 06
Page 1 of 1

This endorsement changes
the policy
– PLEASE READ THIS CAREFULLY –

VIRUS OR BACTERIA EXCLUSION

DEFINITIONS

Definitions Amended –

When "fungus" is a defined "term", the definition of "fungus" is amended to delete reference to a bacterium.

When "fungus or related perils" is a defined "term", the definition of "fungus or related perils" is amended to delete reference to a bacterium.

PERILS EXCLUDED

The additional exclusion set forth below applies to all coverages, coverage extensions, supplemental coverages, optional coverages, and endorsements that are provided by the policy to which this endorsement is attached, including, but not limited to, those that provide coverage for property, earnings, extra expense, or interruption by civil authority.

1. The following exclusion is added under Perils Excluded, item 1.:

Virus or Bacteria –

"We" do not pay for loss, cost, or expense caused by, resulting from, or relating to any virus, bacterium, or other microorganism that causes disease, illness, or physical distress or that is capable of causing disease, illness, or physical distress.

This exclusion applies to, but is not limited to, any loss, cost, or expense as a result of:

- a. any contamination by any virus, bacterium, or other microorganism; or
 - b. any denial of access to property because of any virus, bacterium, or other microorganism.
2. **Superseded Exclusions** – The Virus or Bacteria exclusion set forth by this endorsement supersedes the "terms" of any other exclusions referring to "pollutants" or to contamination with respect to any loss, cost, or expense caused by, resulting from, or relating to any virus, bacterium, or other microorganism that causes disease, illness, or physical distress or that is capable of causing disease, illness, or physical distress.

OTHER CONDITIONS

Other Terms Remain in Effect –

The "terms" of this endorsement, whether or not applicable to any loss, cost, or expense, cannot be construed to provide coverage for a loss, cost, or expense that would otherwise be excluded under the policy to which this endorsement is attached.

CL 0700 10 06

SCHEDULE OF COVERAGES VEHICLE PHYSICAL DAMAGE

"COVERED VEHICLES"

☐ Vehicle Schedule attached to this policy.

☒ Schedule on File with us, received on: Month 02 Day 03 Year 2025

"COVERED PERILS"

☒ Collision

☒ Comprehensive

"LIMITS"

Vehicles Limit – the most we will pay for "loss" to any one "covered vehicle" is: \$290,000

Catastrophe Limit – the most we will pay for "loss" in any one accident or occurrence is: \$1,000,000

SUPPLEMENTAL COVERAGES AND "LIMITS"

Temporary Replacement "Vehicle" Physical Damage: \$100,000 per "vehicle" for up to 30 days

Newly Acquired "Vehicle" Physical Damage: \$290,000 per "vehicle" for up to 5 days

Temporary Transportation Rental Expense: \$150 per day
and \$1,500 per "loss"

Towing, Storage, and Debris Removal Expense: \$10,000 per "loss"

"On-Board Expendable Supplies": \$2,500 per "vehicle"

"Pollutants" Cleanup and Removal Expense: \$10,000 per "loss"
and \$20,000 annual aggregate

Moving Equipment: \$5,000 per "loss"

"Electronic Equipment": \$2,500 per "vehicle"

Recharge of Fire Extinguishing Equipment: \$2,500 per "loss"

Rewards: \$1,250 per "loss"

VALUATION

☒ "Actual Cash Value"

DEDUCTIBLE

\$5,000

COINSURANCE

☒ 80% ☐ 90% ☐ 100% ☐ Other: _____%

PREMIUM ADJUSTMENT PERIOD – (check one)

☐ Monthly

☐ Quarterly

☐ Annually

OPTIONAL COVERAGES AND ENDORSEMENTS

ADDITIONAL INFORMATION

25% Minimum Earned Premium

VEHICLE PHYSICAL DAMAGE COVERAGE

AGREEMENT

In return for your payment of the required premium, we provide the coverage described herein subject to all the "terms" of this Policy.

Throughout this Policy, the words "you" and "your" mean the persons or organizations named as the insured on the Policy Declarations, and the words "we", "us", and "our" mean the company providing this coverage.

Refer to the **DEFINITIONS** section for words and phrases that have special meaning. These words and phrases are shown in quotation marks.

DEFINITIONS

1. "Actual cash value" for a "covered vehicle" means replacement cost adjusted for depreciation, mileage, and physical condition. "Actual cash value" for equipment and supplies means replacement cost adjusted for depreciation and physical condition.
2. "Contractors' equipment" means machinery, equipment, and tools of a mobile nature that you use in your contracting, installation, erection, repair, or moving operations or projects. "Contractors' equipment" also means:
 - a. self-propelled vehicles designed and used primarily to carry mounted equipment;
 - b. vehicles designed for highway use that are unlicensed and not operated on public roads; or
 - c. vehicles not designed for highway use that are unlicensed and not operated on public roads.
3. "Covered peril" means only those perils to which this insurance applies as indicated on the Schedule of Coverages.
4. "Covered vehicle" means a "vehicle" specifically described either on the Vehicle Schedule attached to this Policy or the Schedule on File with us, as shown on the Schedule of Coverages.
5. "Diminution in value" means the actual loss in market value or resale value that results from the "loss".
6. "Electronic equipment" means equipment designed to run by electrical power from the "covered vehicle's" electrical system that is used for navigation, communications, or tracking vehicle or driver operations, and permanently installed on or located in a "covered vehicle" at the time of "loss", any installed software on that equipment, and antenna attached to a "covered vehicle" used to aid in operation of such electronic equipment. Equipment is considered permanently installed if the equipment is removable from a housing unit that is permanently installed in a "covered vehicle". "Electronic equipment" does not include cell phones, tablets, laptops, or computers.
7. "Employee" means a person hired by you as a W-2 employee or retained by you as an independent contractor or owner operator pursuant to a written agreement and whose compensation is reported on IRS Tax Form 1099, while performing work for you.

8. "Limit" means the most we will pay for the applicable coverage as indicated on the Schedule of Coverages.
 9. "Loss" means accidental, direct physical loss or damage or theft to a "covered vehicle" or to covered equipment or supplies if a "limit" is shown on the Schedule of Coverages for that Supplemental Coverage.
 10. "On-board expendable supplies" means fuel, oil, grease, and other supplies necessary for the operation of the vehicle.
 11. "Pollutants" means any solid, liquid, gaseous, thermal, or biological irritant or contaminant, including but not limited to smoke, vapor, gases, soot, fumes, acids, alkalis, lead, asbestos, microplastics, chemicals, toxins, or waste. Waste includes materials to be recycled, reconditioned, or reclaimed. "Pollutants" also includes any gases or substances that are alleged to contribute to climate change or ozone depletion; and, electromagnetic fields and electromagnetic radiation across the entire frequency spectrum.
 12. "Terms" means all provisions, limitations, exclusions, conditions, definitions, and "limits" of this Policy, including the Policy Declarations, Schedule of Coverages, and all endorsements.
 13. "Trailer" means an over-the-road vehicle designed to carry cargo while being hauled by a tractor or other self-propelled power unit. "Trailer" includes, but is not limited to:
 - a. trailers, semi-trailers, automobile racks, flatbeds, lowboys, and tankers;
 - b. dollies used to convert semi-trailers into trailers; and
 - c. shipping containers designed to be attached to and transported by trailers.
 14. "Vehicle" means any auto, truck, "trailer", or combination of these pulled by one (1) power unit.
-

PROPERTY COVERED

"Covered Vehicle(s)" – We pay for "loss" to a "covered vehicle" caused by a "covered peril" that occurs during the policy period, subject to the "terms" of this coverage.

PROPERTY NOT COVERED

1. **"Vehicle(s)" Not Covered** – We do not pay for "loss" to any "vehicle":
 - a. involved in the course of illegal transportation or trade;
 - b. that occurs while used by anyone other than you or your "employee";
 - c. that you lease, rent, or loan to others, with or without a written agreement;
 - d. while waterborne, unless in the course of transportation on regularly scheduled ferries, lighters, car floats, or other similar regularly scheduled vessels; or
 - e. located underwater or underground unless in the course of transportation through tunnels.

2. **Property Not Covered** – We do not cover:

- a. "Contractors' equipment"; or
- b. Personal effects or other property carried in or on a "covered vehicle" except as otherwise indicated in the **SUPPLEMENTAL COVERAGES** section.

"COVERED PERILS"

The following defines the available "covered perils". The "covered perils" provided by this Policy are limited to the "covered perils" indicated on the Schedule of Coverages that occur during the policy period.

1. **Collision** – "loss" caused by or resulting from the collision of a "covered vehicle" with another object or the upset or overturn of the "covered vehicle".
2. **Comprehensive Coverage** – "loss" to a "covered vehicle" caused by or resulting from any cause except otherwise excluded or collision, upset, or overturn.

SUPPLEMENTAL COVERAGES

Provisions That Apply To Supplemental Coverages – The Supplemental Coverages listed below apply only if a "limit" is shown on the Schedule of Coverages for that Supplemental Coverage. Unless otherwise indicated, the "limit" for a Supplemental Coverage is separate from and not part of the Vehicle Limit shown on the Schedule of Coverages. However, in no event will we pay more than the Catastrophe Limit for any "loss".

The "limit" for a Supplemental Coverage:

- a. is the only "limit" available for that described coverage; and
- b. cannot be combined with or added to any other "limit" under this Policy to increase the "limit" for such Supplemental Coverage, including any Supplemental Coverage, coverage extension, or other coverage added to this Policy by endorsement.

If the coinsurance provisions are part of this Policy, the following Supplemental Coverages are not subject to and not considered in applying coinsurance conditions.

1. **Temporary Replacement "Vehicle" Physical Damage** – We will pay for "loss" to a "vehicle" leased, loaned, or rented to you to temporarily replace a "covered vehicle" lost due to or damaged by a "covered peril" for up to the number of days indicated on the Schedule of Coverages from the date of "loss" until the damaged "vehicle" is repaired, returned to service, or the expiration of this Policy, whichever first occurs.

The most we will pay for "loss" to a temporary replacement "vehicle" is the "limit" for Temporary Replacement "Vehicle" Physical Damage shown on the Schedule of Coverages.

2. **Newly Acquired "Vehicle" Physical Damage** – If during the policy period you acquire additional "vehicle(s)" of the type already covered by this Policy, we will cover such "vehicle(s)" for up to the number of days indicated for Newly Acquired "Vehicles" on the Schedule of Coverages, or until the expiration of the Policy, whichever first occurs. You agree to report such "vehicle(s)" to us and pay any additional premium from the date you acquire it. However, this Policy will not cover such "vehicle(s)" if you do not report it to us within the specified number of days indicated on the Schedule of Coverages from the date of acquisition.

The most we will pay under this Supplemental Coverage is the "limit" for Newly Acquired "Vehicle" Physical Damage shown on the Schedule of Coverages.

3. **Temporary Transportation Rental Expense** – We will pay up to the Temporary Transportation Rental Expense "limit" shown on the Schedule of Coverages for temporary transportation rental expense incurred by you because a "covered vehicle" is disabled due to "loss" caused by a "covered peril". We will pay for such expense only if you do not have another "vehicle" capable of performing similar functions of the disabled "vehicle". We only pay for temporary transportation rental expenses incurred during the period beginning forty-eight (48) hours after the "loss" and ending, regardless of the Policy's expiration, when the "covered vehicle" is repaired, returned to service, or we pay for its "loss".

4. **Towing, Storage, And Debris Removal Expense** –

- a. **Coverage** – We will pay up to the Towing, Storage, and Debris Removal Expense "limit" shown on the Schedule of Coverages for:
- 1) towing and storage charges you actually incur that are necessitated by a "loss" caused by a "covered peril" to a "covered vehicle"; and
 - 2) expenses to remove debris of a "covered vehicle" caused by a "covered peril". Debris removal expenses will be paid only if they are reported to us within one hundred eighty (180) days of the date of such "loss".
- b. **We Do Not Cover** – We do not provide coverage for costs or expenses to extract "pollutants" from land or water, or remove, restore, or replace polluted land, air, or water.

5. **"On-Board Expendable Supplies"** –

- a. **Coverage** – We pay for "loss" caused by a "covered peril" to your "on-board expendable supplies" in a "covered vehicle".

The most we will pay for "loss" to "on-board expendable supplies" is the "limit" for "On-Board Expendable Supplies" shown on the Schedule of Coverages.

- b. **We Do Not Cover** – We do not provide coverage for expendable supplies of others being transported or shipped by you under this Supplemental Coverage.

6. **"Pollutants" Cleanup And Removal Expense** –

- a. **Coverage** – We pay your expense to extract "pollutants" from land or water if the discharge, dispersal, seepage, migration, release, or escape of the "pollutants" is due to "loss" to a "covered vehicle" caused by a "covered peril" that occurs during the policy period.
- b. **Time Limitation** – This coverage applies only if the expenses to extract "pollutants" are reported to us in writing within one hundred eighty (180) days from the date the "covered peril" occurs.
- c. **We Do Not Cover** – We do not pay the cost of testing, evaluating, observing, or recording the existence, level, or effects of "pollutants". However, we pay the cost of testing that is necessary for the extraction of "pollutants" from land or water.

The most we will pay under this Supplemental Coverage is the "limits" for "Pollutants" Cleanup and Removal Expense shown on the Schedule of Coverages.

7. **Moving Equipment** –

- a. **Coverage** – In the event of a "loss" to a "covered vehicle" caused by a "covered peril", we pay for "loss" to moving equipment on that "covered vehicle". Moving equipment means tarps, chains, tie-downs, binders, pads, covers, dollies, pallets, packing materials, and hand trucks.

The most we will pay for "loss" to moving equipment on a "covered vehicle" is the "limit" for Moving Equipment shown on the Schedule of Coverages.

- b. **Coverage Limitation** – Moving equipment does not include "vehicles", "trailers", or other motorized equipment.

8. **"Electronic Equipment"** –

- a. **Coverage** – We pay for "loss" caused by a "covered peril" to you or your "employee's" "electronic equipment" and "electronic equipment" of others that is in your care, custody, or control.

The most we will pay for "loss" to "electronic equipment" is the "limit" for "Electronic Equipment" shown on the Schedule of Coverages.

- b. **We Do Not Cover** – We do not provide coverage under this Supplemental Coverage for:

- 1) audio or video equipment designed solely for entertainment; or
- 2) equipment of others being transported or shipped.

9. **Recharge Of Fire Extinguishing Equipment** – We reimburse your incurred expenses to recharge fire extinguishing equipment that is in a "covered vehicle" and discharged to fight a fire as a result of a "covered peril". The most we reimburse for these expenses is the "limit" for Recharge of Fire Extinguishing Equipment shown on the Schedule of Coverages.

10. **Rewards** –

- a. **Coverage** –

- 1) We pay a reward to an eligible person for information leading to the arrest and conviction of any person or persons committing arson, theft, or vandalism of a "covered vehicle". The conviction must involve a "loss" covered under this Policy caused by arson, theft, or vandalism.
- 2) We pay a reward to an eligible person for the return of a stolen "covered vehicle", when the loss is caused by theft.

The most we pay for a reward involving any one (1) "loss" is the "limit" for Rewards shown on the Schedule of Coverages. The amount we pay is not increased by the number of persons involved in providing the information.

- b. **Eligible Person** – An eligible person under this Supplemental Coverage means the first person to voluntarily provide the applicable law enforcement agency with the necessary information or return the stolen covered property. An eligible person cannot be:

- 1) you or any family member;
- 2) your "employee" or any of his or her family members;
- 3) an "employee" of the applicable law enforcement agency;

- 4) any person who had custody of the covered property at the time the property was stolen; or
 - 5) any person involved in the arson, theft, or vandalism.
- c. **Coverage Limitation** – There will be no reward payment unless and until the person(s) committing the crime is (are) convicted, or the covered property is returned.
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HOW MUCH WE PAY

1. **Our Payment Options For A "Covered Vehicle"** – In the event of a "loss" to a "covered vehicle" caused by a "covered peril", we pay the lesser of the following payment options, subject to paragraphs 3. through 9. of this section:
 - a. The "actual cash value" of the damaged or stolen "covered vehicle" as of the time of the "loss";
 - b. The cost of repairing the "covered vehicle" or replacing the damaged or stolen "covered vehicle" with a "vehicle" of like kind and quality as of the time of the "loss";
 - c. The value you provided for the "covered vehicle", which was damaged or stolen, as shown on the Vehicle Schedule or Schedule on File with us; or
 - d. The applicable Limits of insurance shown on the Schedule of Coverages.
2. **Payment For Equipment Or Supplies** – The most we will pay for "loss" to any equipment or supplies caused by a "covered peril" is the "actual cash value", subject to paragraphs 3. through 8. of this section, and only if a "limit" is shown on the Schedule of Coverages for the applicable Supplemental Coverage for such equipment or supplies. However, in no event will we pay more than the Catastrophe Limit for any "loss".
3. **Your "Losses"** –
 - a. **Adjustment And Payment Of "Loss"** – We adjust each "loss" with you. Payment will be made to you. If a loss payee is named in the Policy, payment will be made to you and the loss payee as your and their interest appear.
 - b. **Conditions For Payment Of "Loss"** – An insured "loss" will be payable thirty (30) days after:
 - 1) a satisfactory proof of "loss" is received; and
 - 2) the amount of the "loss" has been established either by written agreement with you or our receipt of an appraisal award with us.
4. **Property Of Others** – A "loss" to property of others may be adjusted with and paid to:
 - a. you on behalf of the owner; or
 - b. the owner. If we pay the owner, we will not pay you.
5. **Insurable Interest** – We do not pay more than your insurable interest in the "covered vehicle".
6. **Flat Deductible** – We pay only that part of your "loss" over the deductible amount indicated on the Schedule of Coverages. The deductible will be applied to the lesser of the "limit" for the "covered vehicle" shown on the Vehicle Schedule or Schedule on File with us, or the amount of the "loss".

7. **Insurance Under More Than One Coverage** – If more than one (1) coverage of this Policy insures the same "loss", we pay no more than the actual claim, "loss", or damage sustained, subject to the highest applicable "limit".
8. **Insurance Under More Than One Policy** –
- a. **Proportional Share** – You may have other insurance subject to the same "terms" as this Policy. If you do, we will pay our share of the covered "loss". Our share is the proportion that the applicable "limit" under this Policy bears to the "limit" of all policies covering on the same basis.
 - b. **Excess Amount** – If there is other insurance covering the same "loss", other than that described in paragraph a. above, we will pay only for the amount of covered "loss" in excess of the amount due from that other insurance, whether you can collect on it or not. However, we will not pay more than the applicable "limit" under this Policy.
9. **Coinsurance** –
- a. **When Coinsurance Applies** – We pay only a part of the "loss" if the "limit" for the "covered vehicle" shown on the Vehicle Schedule or Schedule on File with us is less than the coinsurance percentage of the "actual cash value" of the "covered vehicle". The coinsurance percentage is indicated on the Schedule of Coverages.
 - b. **How We Determine Our Part Of The "Loss"** – Our part of the "loss" is determined using the following steps:
 - 1) multiply the coinsurance percent indicated on the Schedule of Coverages by the "actual cash value" of the "covered vehicle" at the time of "loss";
 - 2) divide the "limit" for the "covered vehicle" shown on the Vehicle Schedule or Schedule on File with us by the result determined in paragraph b.1) above; and then
 - 3) multiply the total amount of "loss", after the application of any deductible, by the result determined in paragraph b.2) above.

The most we pay is the amount determined in paragraph b.3) above or the "limit" shown on the Vehicle Schedule or Schedule on File with us less the deductible, whichever is less. We do not pay any remaining part of the "loss".
 - c. **When Coinsurance Does Not Apply** – Conditions for coinsurance do not apply unless a coinsurance percentage is indicated on the Schedule of Coverages.

EXCLUSIONS

We do not pay for any loss or damage caused directly or indirectly by, that results from, or arises out of one (1) or more of the following excluded causes or events. Such damage or theft is excluded regardless of other contributing or aggravating causes or events, whether occurring at the same time as, or after the excluded causes or events.

- 1. **Civil Authority** – We do not pay for any loss or damage, or theft arising out of or resulting from an order of any civil authority, including seizure, confiscation, destruction, or quarantine of property. We do cover "loss" resulting from acts of destruction by the civil authority to prevent the spread of fire, unless caused by a "covered peril".
- 2. **Nuclear Hazard** – We do not pay for any loss or damage, or theft arising out of or resulting from any nuclear reaction, nuclear radiation, or radioactive contamination whether controlled or uncontrolled or whether caused by natural, accidental, or artificial means. Any loss caused by nuclear hazard is not considered "loss" caused by fire, explosion, or smoke. "Loss" to a "covered vehicle" caused by fire resulting from the nuclear hazard is covered.

3. **War And Military Action** – We do not pay for any loss or damage arising out of or resulting from:
- a. war, including undeclared war or civil war;
 - b. a warlike action by a military force, including action taken to prevent or defend against an actual or expected attack, by any government, sovereign, or other authority using military personnel or other agents; or
 - c. insurrection, rebellion, revolution, or unlawful seizure of power including action taken by governmental authority to prevent or defend against any of these.
4. **Contamination Or Deterioration** – We do not pay for any loss or damage arising out of or resulting from contamination or deterioration, including corrosion, decay, fungus, mildew, mold, rot, or rust. We do pay for contamination or deterioration of a "covered vehicle" caused by a "covered peril".
5. **Criminal, Fraudulent, Dishonest, Or Illegal Acts** – We do not pay for any loss or damage arising out of or resulting from criminal, fraudulent, dishonest, or illegal acts committed, alone or in collusion with another, by:
- a. you;
 - b. anyone who has an interest in the "covered vehicle" or equipment or payment of a covered expense or reward;
 - c. anyone to whom you entrust a "covered vehicle";
 - d. your partners, officers, directors, trustees, or joint venturers, or members or managers if you are a limited liability company; or
 - e. any employee or agent of a., b., c., or d. above, whether or not they are in the course and scope of their work.

This exclusion does not apply to acts of destruction by your "employees", but we do not pay for theft by "employees".

6. **Consequential Damage** – We do not pay for any consequential damage. Consequential damage means loss of revenue, income, business, customers, or goodwill, caused by or resulting from damage or loss of use, delay, or loss of market.
7. **Freezing And Mechanical Breakdown** – We do not pay for any loss or damage caused by or resulting from freezing or any mechanical, structural or electrical breakdown or malfunction, including a breakdown or malfunction arising out of a structural, mechanical, or reconditioning process.
- But if a mechanical, structural, or electrical breakdown or malfunction results in a "covered peril", we do cover the "loss" caused by that "covered peril".
8. **Missing "Covered Vehicle", Covered Equipment, Or Supplies** – We do not pay for any missing, or mysterious disappearance of any, "covered vehicle", covered equipment or supplies, or any other instance where there is no physical evidence to show what happened to the "covered vehicle", covered equipment, or supplies.
9. **"Pollutants"** – We do not pay for any loss or damage arising out of or resulting from release, discharge, seepage, migration, dispersal, or escape of "pollutants" except as specifically provided under **SUPPLEMENTAL COVERAGES**, 6. "Pollutants" Cleanup and Removal Expense.
10. **Temperature And Humidity** – We do not pay for any loss or damage arising out of or resulting from dryness, dampness, humidity, or changes in or extremes of temperature.

But if dryness, dampness, humidity, or changes in or extremes of temperature results in a "covered peril", we do cover the "loss" caused by that "covered peril".

11. **Voluntary Parting** – We do not pay for any loss or damage arising out of or resulting from voluntary parting with title to or possession of a "covered vehicle", covered equipment, or supplies because of any fraudulent scheme, trick, or false pretense.
12. **Wear And Tear** – We do not pay for any loss or damage arising out of or resulting from wear and tear to a "covered vehicle", covered equipment, or supplies.
13. **Tires** – We do not pay for any loss or damage arising out of or resulting from blowouts, punctures, or other damage to tires, unless "loss" to the "covered vehicle" is caused by a "covered peril".
14. **Unauthorized Use** – We do not pay for any loss or damage to or theft of any "covered vehicle" while operated, maintained, or used:
 - a. by any person who is under the age of eighteen (18);
 - b. by any person who did not possess a valid commercial driver's license issued in the United States of America at the time of "loss"; or
 - c. in violation of any state law with respect to suspension or revocation of driver's license or registration.
15. **Intoxication Or Impairment** – We do not pay if the person operating the "covered vehicle" is charged under state or federal law with driving while intoxicated, impaired, or under the influence of alcohol or drugs, or at the time of the "loss" refuses to be tested for drug or alcohol related impairment.
16. **Racing** – We do not pay for any loss or damage to a "covered vehicle" arising out of or resulting from any racing, demolition or stunting contest or activity, or while practicing for such contest or activity. We also do not pay for loss or damage to any "covered vehicle" while that "covered vehicle" is being prepared for such a contest or activity.
17. **Electronic Devices** – We do not pay for any loss or damage to or theft of any of the following:
 - a. Tapes, records, discs, or other similar audio, visual or data electronic devices designed for use with audio, visual or data "electronic equipment";
 - b. Any device designed or used to detect speed-measuring equipment such as radar or laser detectors and any jamming apparatus intended to elude or disrupt speed-measurement equipment; or
 - c. Any "electronic equipment" or device not permanently installed, that reproduces, receives, or transmits audio, visual, or data signals.

This exclusion is subject to the "Electronic Equipment" Supplemental Coverage if there is a "Limit" shown on the Schedule of Coverages for that Supplemental Coverage.

18. **"Diminution In Value"** – We do not pay for "diminution in value".

CONDITIONS – WHAT YOU MUST DO IN CASE OF "LOSS"

1. **Notice** – In case of a "loss", you must:
 - a. give us or our agent prompt notice including a description of the vehicles involved (we may request written notice); and
 - b. give notice to the police where required by law or if the "loss" involves theft or vandalism of a "covered vehicle".

2. **You Must Protect "Covered Vehicles"** – You must take all reasonable steps to protect "covered vehicles" at the time of and after a "loss" to avoid further "loss".
 - a. **Payment Of Reasonable Costs** – We reimburse the reasonable costs incurred by you for necessary repairs or emergency measures performed solely to protect a "covered vehicle" from further damage by a "covered peril" if a "covered peril" already has caused a "loss" to a "covered vehicle". You must keep an accurate record of such costs. Our payment of reasonable costs does not increase the "Limits" shown on the Schedule of Coverages.
 - b. **We Do Not Pay** – We do not pay for such repairs or emergency measures performed on "covered vehicles" that were not damaged by a "covered peril".
3. **Proof Of "Loss"** – You must send us, within sixty (60) days after our request, a signed, sworn proof of "loss". This must include the following information:
 - a. the time, place, and circumstances of the "loss";
 - b. other policies of insurance that may cover the "loss";
 - c. your interest and the interests of all others in the "covered vehicles" involved, including all mortgages and liens;
 - d. changes in title of the "covered vehicle" during the policy period; and
 - e. estimates, specifications, inventories, and other reasonable information that we may require to evaluate and settle the "loss".
4. **Examination** – You must submit to examination under oath in matters connected with the "loss" as often as we reasonably request and give us sworn statements of the answers. If more than one (1) person is examined, we have the right to examine and receive statements separately and not in the presence of others.
5. **Records** – You must produce records, including tax returns and bank microfilms of all canceled checks relating to value, "loss", and expense and permit copies and extracts to be made of these as often as we reasonably request.
6. **Damaged "Vehicle"** – You must allow us to inspect the damaged and undamaged "vehicles" as often as we reasonably request and allow us to take samples.
7. **Volunteer Payments** – You must not, except at your own expense, voluntarily make any payments, assume any obligations, pay, or offer any rewards, or incur any other expenses except to protect "vehicles" from further damage.
8. **Abandonment** – You may not abandon any "vehicle" to us without our written consent.
9. **Cooperation** – You must cooperate with us in performing all acts required by this Policy.

OTHER CONDITIONS

1. **Appraisal** – If you and we do not agree on the amount of the "loss" or the value of a "covered vehicle", either party may demand that these amounts be determined by appraisal.

If either makes a written demand for appraisal, each will select a competent, independent appraiser and notify the other of the appraiser's identity within twenty (20) days of receipt of the written demand. The two (2) appraisers will then select a competent, impartial umpire. If the two (2) appraisers are unable to agree upon an umpire within fifteen (15) days, you or we can ask a judge of a court of record in the state where the "covered vehicle" is located to select an umpire.

The appraisers will then determine and state separately the amount of "loss".

The appraisers will also determine the value of "covered vehicle" items at the time of the "loss", if requested.

If the appraisers submit a written report of any agreement to us, the amount agreed upon will be the amount of the "loss". If the appraisers fail to agree within a reasonable time, they will submit only their differences to the umpire. Written agreement so itemized and signed by any two (2) of these three (3), sets the amount of the "loss".

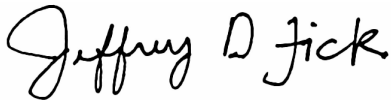
Each appraiser will be paid by the party selecting that appraiser. Other expenses of the appraisal and the compensation of the umpire will be paid equally by you and us.

2. **Benefit To Others** – Insurance under this coverage will not directly or indirectly benefit anyone having custody of your "covered vehicle", covered equipment, or supplies.
3. **Conformity With Statute** – When a condition of this coverage is in conflict with an applicable law, that condition is amended to conform to that law.
4. **Estates** – This provision applies only if the insured is an individual.
 - a. **Your Death** – On your death and subject to the **HOW MUCH WE PAY** section of this coverage, we pay a covered "loss" to:
 - 1) the person who has custody of your "covered vehicle" until a legal representative is qualified and appointed;
or
 - 2) your legal representative. This person or organization is an insured only with respect to a "covered vehicle", covered equipment, or supplies.
 - b. **Policy Period Is Not Extended** – This coverage does not extend past the policy period indicated on the Policy Declarations.
5. **Misrepresentation, Concealment, Or Fraud** – This coverage is void as to you and any other insured if, before or after a "loss":
 - a. you or any other insured have concealed or misrepresented:
 - 1) a material fact or circumstance that relates to this insurance or the subject thereof; or
 - 2) your interest herein.
 - b. there has been fraud or false swearing by you or any other insured with regard to a matter that relates to this insurance or the subject thereof.
6. **Policy Period** – We pay for a covered "loss" that occurs during the policy period.
7. **Recoveries** – If we pay you for the "loss" and a lost or damaged "covered vehicle" is recovered, or payment is made by those responsible for the "loss", the following provisions apply:
 - a. you must notify us promptly if you recover a "covered vehicle" or receive payment;
 - b. we must notify you promptly if we recover a "covered vehicle" or receive payment;
 - c. any recovery expenses incurred by either you or us are reimbursed first;

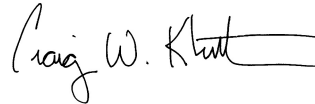
- d. you may keep the recovered "covered vehicle" but you must refund to us the amount of the claim paid or any lesser amount to which we agree; and
 - e. if the claim paid is less than the agreed "loss" due to a deductible or other limiting "terms" of this Policy, any recovery will be prorated between you and us based on our respective interest in the "loss".
8. **Restoration Of "Limits"** – A "loss" we pay under this coverage does not reduce the "covered vehicle" "limit" shown on the Vehicle Schedule or Schedule on File with us unless it is a total "loss" to a "covered vehicle". In the event of a total "loss" to a "covered vehicle", we refund the unearned premium on that item.
9. **Subrogation** – If we pay for a "loss", we may require you to assign to us your right of recovery against others. You must do all that is necessary to secure our rights. We do not pay for a "loss" if you impair this right to recover. You may waive your right to recover from others in writing before a "loss" occurs.
10. **Suit Against Us** – No one may bring a legal action against us under this coverage unless:
- a. all of the "terms" of this coverage have been complied with; and
 - b. the suit has been brought within two (2) years after you first have knowledge of the "loss". If any applicable law makes this limitation invalid, then suit must begin within the shortest period permitted by law.
11. **Territorial Limitation** – We cover "covered vehicles" while in the United States of America, its territories and possessions, Canada, and Puerto Rico.
12. **Premium Adjustment** – If a premium adjustment frequency is shown on the Schedule of Coverages we will adjust the premium at the end of the adjustment period for any "covered vehicles" added or removed since the previous adjustment.

SIGNATURE PAGE

In Witness Whereof, we have caused this policy to be executed and attested, and, if required by state law, this policy shall not be valid unless countersigned by our authorized representative.

Handwritten signature of Jeffrey D. Fick in black ink.

Secretary

Handwritten signature of Craig W. Klutt in black ink.

President